

SOCIAL JUSTICE, INCLUSION AND WELFARE-STATE FRAMEWORK

THREE DIMENSIONS OF JUSTICE → EQUALITY LADDER → CONSTITUTIONAL ANCHOR → CAPABILITY STANDARD → AUTHORITIES BANK → SOCIAL PROTECTION FLOOR CARD

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g4 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



03

STAGE 03

CAPABILITY STANDARD

CAPABILITY STANDARDACHIEVED STATESBEING NOURISHED, BEING HEALTHY, BEING LITERATETHE REAL FREEDOMS TO ACHIEVE THOSE STATESOPEN-ENDED FRAMEWORK; SPECIFICATION LEFT TO PUBLIC REASONINGTEN CENTRAL CAPABILITIES AS A THRESHOLD A JUST SOCIETY

EQUAL INCOME YIELDS UNEQUAL CAPABILITY ACROSS HEALTH AND EXCLUSION

CORE CLAIM	MECHANISM	CONSEQUENCE / LIMIT
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03

CORE CLAIM

- PREAMBLE → socialist republic; justice social, economic and political
- PART IV → Articles 38, 39, 41 to 43, 46 to 47 direct the welfare state

MECHANISM

- ARTICLE 46 → educational and economic interests of SCs, STs and weaker sections
- LIMIT → not directly justiciable; interpretive aid, recorded with Minerva Mills 1980

CONSEQUENCE / LIMIT

- PREAMBLE → socialist republic; justice social, economic and political
- PART IV → Articles 38, 39, 41 to 43, 46 to 47 direct the welfare state

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT → not directly justiciable; interpretive aid, recorded with Minerva Mills 1980.

04

STAGE 03

CAPABILITY STANDARD

CAPABILITY STANDARD

ACHIEVED STATES

BEING NOURISHED, BEING HEALTHY, BEING LITERATE

THE REAL FREEDOMS TO ACHIEVE THOSE STATES

OPEN-ENDED FRAMEWORK; SPECIFICATION LEFT TO PUBLIC REASONING

TEN CENTRAL CAPABILITIES AS A THRESHOLD A JUST SOCIETY

EQUAL INCOME YIELDS UNEQUAL CAPABILITY ACROSS HEALTH AND EXCLUSION

CORE CLAIM

- FUNCTIONINGS → achieved states: being nourished, being healthy, being literate
- CAPABILITIES → the real freedoms to achieve those states

MECHANISM

- SEN → open-ended framework; specification left to public reasoning
- NUSSBAUM → ten central capabilities as a threshold a just society must secure

CONSEQUENCE / LIMIT

- CONSEQUENCE → equal income yields unequal capability across health and exclusion
- FUNCTIONINGS → achieved states: being nourished, being healthy, being literate

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CONSEQUENCE → equal income yields unequal capability across health and exclusion.

05

STAGE 04

AUTHORITIES BANK

AUTHORITIES BANK

DIFFERENCE PRINCIPLE

INEQUALITY JUST ONLY IF IT BENEFITS THE LEAST ADVANTAGED

FAIR EQUALITY OF OPPORTUNITY AS THE COMPANION STANDARD

REDISTRIBUTION, RECOGNITION AND REPRESENTATION; MISRECOGNITION BLOCKS DISTRIBUTION

WARNING AGAINST POLITICAL EQUALITY AMID SOCIAL AND ECONOMIC INEQUALITY

RECOGNITION CANNOT SUBSTITUTE FOR SERVICES, ASSETS AND EMPLOYMENT

CORE CLAIM

RAWLS → difference principle: inequality just only if it benefits the least advantaged

RAWLS → fair equality of opportunity as the companion standard

MECHANISM

FRASER → redistribution, recognition and representation; misrecognition blocks distribution

AMBEDKAR → warning against political equality amid social and economic inequality

CONSEQUENCE / LIMIT

QUALIFY → recognition cannot substitute for services, assets and employment

RAWLS → difference principle: inequality just only if it benefits the least advantaged

CORE CLAIM

- RAWLS → difference principle: inequality just only if it benefits the least advantaged
- RAWLS → fair equality of opportunity as the companion standard

MECHANISM

- FRASER → redistribution, recognition and representation; misrecognition blocks distribution
- AMBEDKAR → warning against political equality amid social and economic inequality

CONSEQUENCE / LIMIT

- QUALIFY → recognition cannot substitute for services, assets and employment
- RAWLS → difference principle: inequality just only if it benefits the least advantaged

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: QUALIFY → recognition cannot substitute for services, assets and employment.

06

STAGE 05

SOCIAL PROTECTION FLOOR CARD

SOCIAL PROTECTION FLOOR CARD

SOCIAL PROTECTION FLOORS RECOMMENDATION, 2012, NO. 202

GUARANTEE 1

ACCESS TO ESSENTIAL HEALTH CARE, INCLUDING MATERNITY CARE

GUARANTEE 2

BASIC INCOME SECURITY FOR CHILDREN

NUTRITION, EDUCATION AND CARE

GUARANTEE 3

INSTRUMENT → Social Protection Floors Recommendation, 2012, No. 202

GUARANTEE 1 → access to essential health care, including maternity care

→

GUARANTEE 2 → basic income security for children: nutrition, education and care

→

GUARANTEE 3 → basic income security in active age: sickness, unemployment, maternity, disability

CORE CLAIM

- INSTRUMENT → Social Protection Floors Recommendation, 2012, No. 202
- GUARANTEE 1 → access to essential health care, including maternity care
- GUARANTEE 2 → basic income security for children: nutrition, education and care

MECHANISM

- GUARANTEE 3 → basic income security in active age: sickness, unemployment, maternity, disability
- GUARANTEE 4 → basic income security for older persons
- STATUS → a Recommendation, not a ratified Convention; no self-executing domestic duty

CONSEQUENCE / LIMIT

- CLOSE DISTINCTION: Formal equality is not substantive equality, welfare is not charity,....

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE DISTINCTION: Formal equality is not substantive equality, welfare is not charity,.

07

STAGE 06

UNIVERSALISM AGAINST TARGETING

UNIVERSALISM AGAINST TARGETING

LOWER STIGMA, LOWER EXCLUSION ERROR, HIGHER COST, HIGHER INCLUSION

CONCENTRATED RESOURCES, DOCUMENTATION BARRIERS, IDENTIFICATION DISPUTES

ERROR PAIR

INCLUSION ERROR IS LEAKAGE; EXCLUSION ERROR IS THE ELIGIBLE

INDIAN PRACTICE

UNIVERSAL BASIC SERVICES LAYERED ON TARGETED TRANSFERS AND RESERVATION

A PROMISE TO END LEAKAGE MUST STATE ITS EXCLUSION

CORE CLAIM

UNIVERSALISM → lower stigma, lower exclusion error, higher cost, higher inclusion error

TARGETING → concentrated resources, documentation barriers, identification disputes

MECHANISM

ERROR PAIR → inclusion error is leakage; exclusion error is the eligible left out

INDIAN PRACTICE → universal basic services layered on targeted transfers and reservation

CONSEQUENCE / LIMIT

RULE → a promise to end leakage must state its exclusion consequence

UNIVERSALISM → lower stigma, lower exclusion error, higher cost, higher inclusion error

SOCIAL JUSTICE, INCLUSION AND WELFARE FRAMEWORK • TILE 2/4 • same master rows 2545-5779 of 10868 • continues below

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE DISTINCTION: Formal equality is not substantive equality, welfare is not charity..

06

STAGE 06 UNIVERSALISM AGAINST TARGETING

UNIVERSALISM AGAINST TARGETING LOWER STIGMA, LOWER EXCLUSION ERROR, HIGHER COST, HIGHER INCLUSION CONCENTRATED RESOURCES, DOCUMENTATION BARRIERS, IDENTIFICATION DISPUTES ERROR PAIR INCLUSION ERROR IS LEAKAGE; EXCLUSION ERROR IS THE ELIGIBLE INDIAN PRACTICE

UNIVERSAL BASIC SERVICES LAYERED ON TARGETED TRANSFERS AND RESERVATION A PROMISE TO END LEAKAGE MUST STATE ITS EXCLUSION

CORE CLAIM	MECHANISM	CONSEQUENCE / LIMIT
UNIVERSALISM → lower stigma, lower exclusion error, higher cost, higher inclusion error	ERROR PAIR → inclusion error is leakage; exclusion error is the eligible left out	RULE → a promise to end leakage must state its exclusion consequence
TARGETING → concentrated resources, documentation barriers, identification disputes	INDIAN PRACTICE → universal basic services layered on targeted transfers and reservation	UNIVERSALISM → lower stigma, lower exclusion error, higher cost, higher inclusion error
CORE CLAIM - UNIVERSALISM → lower stigma, lower exclusion error, higher cost, higher inclusion error - TARGETING → concentrated resources, documentation barriers, identification disputes	MECHANISM - ERROR PAIR → inclusion error is leakage; exclusion error is the eligible left out - INDIAN PRACTICE → universal basic services layered on targeted transfers and reservation	CONSEQUENCE / LIMIT - RULE → a promise to end leakage must state its exclusion consequence - UNIVERSALISM → lower stigma, lower exclusion error, higher cost, higher inclusion error

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: RULE → a promise to end leakage must state its exclusion consequence.

07

STAGE 07 EQUITY TYPES

EQUITY TYPES HORIZONTAL EQUITY EQUALS TREATED EQUALLY VERTICAL EQUITY UNEQUALS TREATED UNEQUALLY IN PROPORTION TO DISADVANTAGE AFFIRMATIVE ACTION OPERATIONALISES VERTICAL EQUITY, NOT A BREACH OF VERTICAL EQUITY NEEDS A DEFENSIBLE MEASURE OF DISADVANTAGE

CREAMY-LAYER EXCLUSION SHOWS TARGETING INSIDE AFFIRMATIVE ACTION

CORE CLAIM	MECHANISM	CONSEQUENCE / LIMIT
HORIZONTAL EQUITY → equals treated equally	APPLICATION → affirmative action operationalises vertical equity, not a breach of equality	BOUNDARY → creamy-layer exclusion shows targeting inside affirmative action
VERTICAL EQUITY → unequals treated unequally in proportion to disadvantage	CONDITION → vertical equity needs a defensible measure of disadvantage	HORIZONTAL EQUITY → equals treated equally
CORE CLAIM - HORIZONTAL EQUITY → equals treated equally - VERTICAL EQUITY → unequals treated unequally in proportion to disadvantage	MECHANISM - APPLICATION → affirmative action operationalises vertical equity, not a breach of equality - CONDITION → vertical equity needs a defensible measure of disadvantage	CONSEQUENCE / LIMIT - BOUNDARY → creamy-layer exclusion shows targeting inside affirmative action - HORIZONTAL EQUITY → equals treated equally

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: BOUNDARY → creamy-layer exclusion shows targeting inside affirmative action.

08

STAGE 08 WELFARE-STATE MODELS

WELFARE-STATE MODELS STATE ACTS AFTER FAMILY AND MARKET FAIL; MEANS-TESTED AND UNIVERSAL SERVICES AS A CITIZENSHIP RIGHT; DE-STIGMATISED BUT COSTLIER RECORDED AS A HYBRID STATUTORY ENTITLEMENTS LAYERED ON TARGETED SCHEMES NAMED ENTITLEMENTS

NATIONAL FOOD SECURITY ACT, 2013; RIGHT TO EDUCATION ACT

CORE CLAIM	MECHANISM	CONSEQUENCE / LIMIT
RESIDUAL → state acts after family and market fail; means-tested and stigmatised	INDIA → recorded as a hybrid: statutory entitlements layered on targeted schemes	RESIDUAL → state acts after family and market fail; means-tested and stigmatised
INSTITUTIONAL → universal services as a citizenship right; de-stigmatised but costlier	NAMED ENTITLEMENTS → National Food Security Act, 2013; Right to Education Act, 2009	INSTITUTIONAL → universal services as a citizenship right; de-stigmatised but costlier

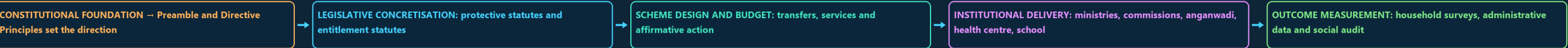
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: NAMED ENTITLEMENTS → National Food Security Act, 2013; Right to Education Act, 2009.

09

STAGE 09 FIVE-STAGE WELFARE MECHANISM

FIVE-STAGE WELFARE MECHANISM CONSTITUTIONAL FOUNDATION PREAMBLE AND DIRECTIVE PRINCIPLES SET THE DIRECTION LEGISLATIVE CONCRETISATION PROTECTIVE STATUTES AND ENTITLEMENT STATUTES SCHEME DESIGN AND BUDGET TRANSFERS, SERVICES AND AFFIRMATIVE ACTION

INSTITUTIONAL DELIVERY



CORE CLAIM	MECHANISM	CONSEQUENCE / LIMIT
CONSTITUTIONAL FOUNDATION → Preamble and Directive Principles set the direction	SCHEME DESIGN AND BUDGET: transfers, services and affirmative action	OUTCOME MEASUREMENT: household surveys, administrative data and social audit
LEGISLATIVE CONCRETISATION: protective statutes and entitlement statutes	INSTITUTIONAL DELIVERY: ministries, commissions, anganwadi, health centre, school	STOP TEST → an answer that ends at scheme design has described intent, not justice

09

STAGE 09 FIVE-STAGE WELFARE MECHANISM

FIVE-STAGE WELFARE MECHANISM

CONSTITUTIONAL FOUNDATION

PREAMBLE AND DIRECTIVE PRINCIPLES SET THE DIRECTION

LEGISLATIVE CONCRETISATION

PROTECTIVE STATUTES AND ENTITLEMENT STATUTES

SCHEME DESIGN AND BUDGET

TRANSFERS, SERVICES AND AFFIRMATIVE ACTION

INSTITUTIONAL DELIVERY

CONSTITUTIONAL FOUNDATION → Preamble and Directive Principles set the direction

LEGISLATIVE CONCRETISATION: protective statutes and entitlement statutes

SCHEME DESIGN AND BUDGET: transfers, services and affirmative action

INSTITUTIONAL DELIVERY: ministries, commissions, anganwadi, health centre, school

OUTCOME MEASUREMENT: household surveys, administrative data and social audit

CORE CLAIM

- CONSTITUTIONAL FOUNDATION → Preamble and Directive Principles set the direction
- LEGISLATIVE CONCRETISATION: protective statutes and entitlement statutes

MECHANISM

- SCHEME DESIGN AND BUDGET: transfers, services and affirmative action
- INSTITUTIONAL DELIVERY: ministries, commissions, anganwadi, health centre, school

CONSEQUENCE / LIMIT

- OUTCOME MEASUREMENT: household surveys, administrative data and social audit
- STOP TEST → an answer that ends at scheme design has described intent, not justice

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: STOP TEST → an answer that ends at scheme design has described intent, not justice.

10

STAGE 10 FIVE RECURRING WELFARE GAPS

FIVE RECURRING WELFARE GAPS

THE ELIGIBLE PERSON IS NOT CORRECTLY LISTED; FIX THE

THE PROHIBITION OR PROTECTION IS NOT APPLIED; NAME THE

THE ENTITLEMENT DOES NOT REACH THE PERSON; TRACE THE

WHAT ARRIVES IS TOO POOR TO CHANGE ANYTHING; MEASURE

NOBODY ESTABLISHES WHETHER IT WORKED; DEMAND THE SURVEY AND

IDENTIFICATION → the eligible person is not correctly listed; fix the roll, not the slogan

ENFORCEMENT → the prohibition or protection is not applied; name the enforcing authority

DELIVERY → the entitlement does not reach the person; trace the last mile

QUALITY → what arrives is too poor to change anything; measure the service, not the

OUTCOME-LEARNING → nobody establishes whether it worked; demand the survey and the round

CORE CLAIM

- IDENTIFICATION → the eligible person is not correctly listed; fix the roll, not the slogan
- ENFORCEMENT → the prohibition or protection is not applied; name the enforcing authority

MECHANISM

- DELIVERY → the entitlement does not reach the person; trace the last mile
- QUALITY → what arrives is too poor to change anything; measure the service, not the count

CONSEQUENCE / LIMIT

- OUTCOME-LEARNING → nobody establishes whether it worked; demand the survey and the round
- IDENTIFICATION → the eligible person is not correctly listed; fix the roll, not the slogan

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: OUTCOME-LEARNING → nobody establishes whether it worked; demand the survey and the round.

11

STAGE 11 ANSWER SPINE FOR A SOCIAL-JUSTICE DEMAND

ANSWER SPINE FOR A SOCIAL-JUSTICE DEMAND

NAME THE DEPRIVATION AND THE DIMENSION OF JUSTICE IT

SEPARATE THE ENTITLEMENT, THE SCHEME THAT CARRIES IT AND

CITE A DATED SURVEY OR ADMINISTRATIVE SOURCE AND STATE

GRADED VERDICT PLUS THE NAMED GAP AND AN EXPLICIT

EVIDENCE LIMIT

MAP RIGHTS-HOLDER, DUTY-BEARER, INSTITUTION

OPEN → name the deprivation and the dimension of justice it engages

BUILD → separate the entitlement, the scheme that carries it and the delivery that reaches

TEST → cite a dated survey or administrative source and state what it cannot prove

CLOSE → graded verdict plus the named gap and an explicit indicator caveat

EVIDENCE LIMIT: AUTHORITY / IMPLEMENTATION: Map rights-holder, duty-bearer, institution

CORE CLAIM

- OPEN → name the deprivation and the dimension of justice it engages
- BUILD → separate the entitlement, the scheme that carries it and the delivery that reaches

MECHANISM

- TEST → cite a dated survey or administrative source and state what it cannot prove
- CLOSE → graded verdict plus the named gap and an explicit indicator caveat

CONSEQUENCE / LIMIT

- EVIDENCE LIMIT: AUTHORITY / IMPLEMENTATION: Map rights-holder, duty-bearer, institution,...
- OPEN → name the deprivation and the dimension of justice it engages

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CLOSE → graded verdict plus the named gap and an explicit indicator caveat.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

CONSTITUTIONAL ANCHOR

PREAMBLE ("SOCIALIST," "JUSTICE — SOCIAL, ECONOMIC

LEGISLATIVE CONCRETISATION

PROTECTIVE LAWS (SC/ST ATROCITIES ACT, RPWD

ILO RECOMMENDATION 202 (2012)

ESTABLISHES A SOCIAL-PROTECTION FLOOR AS A

INSTITUTIONAL COMMISSIONS (NCW, NCM, NCPCR, NHRC)

OPTIONAL SOURCE DEPTH

- Constitutional anchor: Preamble ("socialist," "justice — social, economic
- Legislative concretisation: Protective laws (SC/ST Atrocities Act, RPwD
- ILO Recommendation 202 (2012): Establishes a social-protection floor as a
- CAUTION: Institutional commissions (NCW, NCM, NCPCR, NHRC): Quasi-judicial bodies

ADVANCED DEBATE

- CAUTION: NFSA 2013 as rights-based entitlement: Shifts PDS from discretionary scheme
- CAUTION: RTE 2009 + NEP 2020 tension: RTE mandates free, compulsory education 6-14;
- CAUTION: Manual scavenging as three-dimension test case: Prohibition (corrective),
- CAUTION: Boundary case — creamy-layer exclusion in OBC reservation: Targeting within

LEGACY / NUANCE

- CAUTION: Universalism vs targeting: Universalism reduces stigma and exclusion error
- CAUTION: Rights-based framing vs fiscal constraint: Entitlements (NFSA, RTE) create
- CAUTION: Capability measurement difficulty: Functionings are easier to observe
- CAUTION: Commission overload: NCW, NCM, NCPCR and NHRC can investigate and recommend

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.